

The M.P. Local Authorities School Teachers (Absorption in Government Service) Rules, 1964

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State of Madhya Pradesh - Act

The M.P. Local Authorities School Teachers (Absorption in Government Service) Rules, 1964

MADHYA PRADESH

India

The M.P. Local Authorities School Teachers (Absorption in Government Service) Rules, 1964

Rule

THE-M-P-LOCAL-AUTHORITIES-SCHOOL-TEACHERS-ABSORPTION-IN-GOVERNMENT-SERVICE-RULES-1964 of 1964

Published on 19 August 1963

Commenced on 19 August 1963

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The M.P. Local Authorities School Teachers (Absorption in Government Service) Rules, 1964

1.

Short title.

- These rules may be called the Madhya Pradesh Local Authorities School Teachers (Absorption in Government Service) Rules, 1964.

2.

Definitions.

- In these rules, unless the context otherwise requires-

(a)

"Chairman" means the Chairman of the Committee;

(b)

"Committee" means the Screening Committee of the district constituted under Section 5;

(c)

"Form" means a Form appended to these rules;

(d)

"Act" means the Madhya Pradesh Local Authorities School Teachers (Absorption in Government Service) Act, 1963;

(e)

"Section" means a section of the Act.

3.

Meeting of the Committee.

- The Committee shall meet from time to time on such date and at such time and place as may be fixed by the Chairman.

4.

Notice.

- The notice of the meeting specifying the date, time and place shall be sent to all members of the Committee.

5.

Quorum.

(1)

Three members including the Chairman shall form a quorum.

(2)

If there be no quorum present at a meeting at any time from the beginning to the end thereof, the Chairman shall, after waiting for not less than fifteen and not more than thirty minutes, adjourn the meeting to such hour on the same day or some other further day as he may reasonably fix. A notice of the such adjournment shall be fixed up in the office of the District Educational Officer of the district, and the business which would have been brought before the original meeting had there been a quorum thereat shall be brought before the adjourned meeting and may be disposed of at such a meeting whether there be a quorum present or not.

(3)

A notice of adjournment exhibited in the office of the District Educational Officer of the district on the day on which the meeting is adjourned shall be sufficient notice of the subsequent meeting.

6.

Minutes.

(1)

The names of the members of the Committee present and minutes of the proceedings at such meeting shall be recorded in a book to be kept for the purpose. Such minutes shall be read at the meeting and shall, after confirmation of the meeting, be signed by the Chairman.

(2)

No member of the Committee shall be entitled to object to the minutes of any meeting unless he was present at the meeting to which they relate.

7.

Question to be decided by majority.

- All questions brought before any meeting of the Committee shall be decided by a majority of the members of the Committee present and in the case of an equality of votes the Chairman shall have a second or casting vote.

8.

Principles of absorption.

- In drawing up a list of existing teachers suitable for absorption in Government service the Committee shall subject to the provisions of sub-section (1) of Section 6, have regard to the following, namely :-

(a)

In considering the suitability for absorption in Government service the Committee shall have regard to the status and the

conditions of service of the teachers as existing immediately before the 19th August, 1963.

(b)

A teacher who has been deputed by a local authority for training in any Teacher's Training Institution of the State and to whom full salary is being paid by the said authority shall also be considered for absorption in Government service.

(c)

A teacher who is under suspension or against whom an enquiry is in progress shall not be considered by the Committee until his case is finally settled by the local authority and findings are communicated to the District Educational Officers of the district concerned.

(d)

A teacher who has been on deputation or on leave, having lien on the post of a teacher of primary and/or middle classes in a school run by a local authority shall also be considered for absorption in Government service.

9.

Form of the list.

- The list to be drawn up under sub-section (1) of Section 6 shall be in Form I.

10.

Manner of publication of the list under sub-section (2) of Section 6.

- The list prepared under sub-section (1) of Section 6 shall be published by affixing a copy thereof at the office of the District Educational Officer of the district and on the notice board of the local authorities.

11.

Copies of the list to be forwarded by the Secretary.

- Copies of the list published under sub-section (2) of Section 6 shall be forwarded to the local authorities, the Divisional Superintendent of Education, and the Director of Public Instructions, Madhya Pradesh by the Secretary of the Committee.

12.

Determination of seniority.

(1)

The seniority of an absorbed employee in the post or cadre of absorption shall as on 1st October, 1963, be determined by the length of continuous service, whether officiating or permanent rendered by him immediately before that date in the corresponding post or in the local authority excluding periods of fortuitous appointments which are in the nature of stop-gap arrangements.

(2)

Where the length of service in the corresponding post in the local authorities is equal, the employee senior in age shall be deemed to be senior.

(3)

Notwithstanding anything contained in this rule seniority inter se of employees who before the 1st October, 1963 belonged to the same local authority as it existed before that date shall not be disturbed.

13.

Option.

- An option under the proviso to sub-section (1) of Section 10 shall be given in writing to the District Educational Officer of the district in Form II within a period of three months from the date of publication of the list under sub-section (2) of Section 6 of the Act.

14.

Pay.

- The pay of an absorbed employee shall, except where the State Government otherwise directs, be fixed according to the rules made by the State Government from time to time in respect of the Government servants of the corresponding grades in the service of the State.

15.

Regulation of pay, leave and allowance etc.

- Except as provided by the Act or these rules, the pay, allowance, pension, gratuity, leave, retirement, discipline, control, punishment and other conditions of service of the absorbed employees shall, unless, otherwise directed by the State Government in respect of any of the said matters, be regulated by the rules made by the Government in this

behalf, from time to time, relating to the personnel of the corresponding grades in the Education Department of the State.

16.

Repeal.

- Madhya Pradesh Local Authorities School Teachers (Absorption in Government Service) Rules, 1963 are hereby repealed.

Form I

(See Rule 9)

List of existing teachers considered suitable for absorption in Government service

S.No.

Name

Father's name

Academic qualifications

(1)

(2)

(3)

(4)

Other qualifications, if any

Date of birth

Name of the local authorities running the school

in which the teacher imparts instructions

Remarks

(5)

(6)

(7)

(8)

Secretary

Screening Committee

District.....

Form II

Under Rule 13 of the Madhya Pradesh Local Authorities' School Teachers (Absorption in Government Service) Rules, 1964 Name..... Designation..... hereby opt for the provident fund/pension scheme applicable to me immediately before the first day of October, 1963.

Dated.....

Signature

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